[4] If the Council agree in my construction no legislative act will be necessary. If they differ from me, I will propose a short act rescinding that I clause of the Charter of 1813 from which the difficulty arises.

[5] The argument which I have been considering affects only the form of proceeding. But the admirers of the oriental system of education have used another argument, which, if we admit it to be valid, is decisive against all change. They conceive that the public faith is pledged to the present system, and that to alter the appropriation of any of the funds which have hitherto been spent in encouraging the study of Arabic and Sanscrit would be downright spoliation. It is not easy to understand by what process of reasoning they can have arrived at this conclusion. The grants which are made from the public purse for the encouragement of literature differ in no respect from the grants which are made from the same purse for other objects of real or supposed utility. We found a sanitarium on a spot which we suppose to be healthy. Do we thereby pledge ourselves to keep a sanitarium there if the result should not answer our expectations? We commence the erection of a pier. Is it a violation of the public faith to stop the works, if we afterwards see reason to believe that the building will be useless? The rights of property are undoubtedly sacred. But nothing endangers those rights so much as the practice, now unhappily too common, of attributing them to things to which they do not belong. Those who would impart to abuses the sanctity of property are in truth imparting to the institution of property the unpopularity and the fragility of abuses. If the Government has given to any person a formal assurance —nay, if the Government has excited in any person's mind a reasonable expectation— that he shall receive a certain income as a teacher or a learner of Sanscrit or Arabic, I would respect that person's pecuniary interests. I would rather err on the side of liberality to individuals than suffer the public faith to be called in question. But to talk of a Government pledging itself to teach certain languages and certain sciences, though those languages may become useless, though those sciences may be exploded, seems to me quite unmeaning. There is not a single word in any public instrument from which it can be inferred that the Indian Government ever intended to give any pledge on this subject, or ever considered the destination of these funds as unalterably fixed. But, had it been otherwise, I should have denied the